



## NON-DISCLOSURE AGREEMENT

THIS AGREEMENT dated \_\_\_\_\_, by and between **FMan Soft company** and \_\_\_\_\_ ("Employee").

WHEREAS, **FMan Soft company** and Employee, for their mutual benefit and pursuant to a working relationship which has been or may be established, anticipate that **FMan Soft company** may disclose or deliver to a working relationship which has been or may be established, anticipate that **FMan Soft company** may disclose or deliver to Employee clients, documents, components, parts, information, drawings, data, sketches, plans programs, specifications, techniques, processes, software, inventions and other materials, both written and oral, of a secret, confidential or proprietary nature, including without limitation any and all information relating to marketing, finance, forecasts, invention, research, design or development of information system and any supportive or incidental subsystems, and any and all subject matter claimed in or disclosed by any patent application prepared or filed by or behalf of by **FMan Soft company**, in any jurisdiction, and any amendments or supplements thereto (collectively, "Proprietary Information"); and

WHEREAS, **FMan Soft company** desires to assure that the confidentiality of any Proprietary Information is maintained;

NOW, THEREFORE, in consideration of the foregoing premises, and the mutual covenants contained herein, **FMan Soft company** and Employee hereby agree as follows:

1. For a period of sixty (60) months from the date hereof, Employee shall hold in trust and confidence, and not disclose to others or use for Employee's own benefit or for the benefit of another, any Proprietary Information which is disclosed to Employee by **FMan Soft company**. Employee shall disclose Proprietary Information received under this Agreement to persons within its organization only if such persons (i) have a need to know and (ii) are bound in writing to protect the confidentiality of such Proprietary Information. This

paragraph 1 shall survive and continue after any expiration or termination of this Agreement and shall bind the Employee, its employees, agents, representatives, successors, heirs and assigns.

2. The undertakings and obligations of Employee under this Agreement shall not apply to any Proprietary Information which: (a) is described in an issued patent anywhere in the world, is disclosed in a printed publication available to the public, or is otherwise in the public domain through no action or fault of Employee; (b) is generally disclosed to third parties by **FMan Soft company** without restriction on such third parties, or is approved for release by written authorization of **FMan Soft company**; (c) if not designated "confidential" at the time of first disclosure hereunder, or is not later designated in writing by **FMan Soft company** within thirty (30) days from disclosure to Employee to be of a secret, confidential or proprietary nature; or (d) is shown to **FMan Soft company** by Employee, within ten (10) days from disclosure, by underlying documentation to have been known by Employee before receipt from **FMan Soft company** and/or to have been developed by Employee completely independent of any disclosure by **FMan Soft company**.

3. Title to all property received by Employee from **FMan Soft company**, including all Proprietary Information, shall remain at all times the sole property of **FMan Soft company**, and this Agreement shall not be construed to grant to Employee any patents, licenses or similar rights to such property and Proprietary Information disclosed to Employee hereunder.

4. Employee shall, upon request of **FMan Soft company**, return to **FMan Soft company** all documents, drawings and other tangible materials, including all Proprietary Information and all manifestation thereof, delivered to Employee, and all copies and reproductions thereof.

5. The parties further agree to the following terms and conditions:

i. Any breach by Employee of any of Employee's obligations under this Agreement will result in irreparable injury to **FMan Soft company** for which damages and other legal remedies will be inadequate. In seeking enforcement of any of these obligations, **FMan Soft company** will be entitled (in addition to other remedies) to preliminary and permanent injunctive and other equitable relief to prevent, discontinue and/or restrain the breach of this Agreement.

ii. If any provision of this Agreement is invalid or unenforceable, then such provision shall be construed and limited to the extent necessary, or severed if necessary, in order to eliminate such invalidity or unenforceability, and the other provisions of this Agreement shall not be affected thereby.

iii. In any dispute over whether information or matter is Proprietary Information hereunder, it shall be the burden of Employee to show both that such contested information or matter is not Proprietary

iv. No delay or omission by either party in exercising any rights under this Agreement will operate as a waiver of that or any other right. A waiver or consent given by either party on any one occasion is effective only in that instance and will not be construed as a bar to or waiver of any right on any other occasion.

v. This Agreement shall be binding upon and will insure to the benefit of the parties hereto and their respective successors and assigns.

vi. This Agreement is in addition to any prior written agreement between **FMan Soft company** and Employee relating to the subject matter of this agreement; in the event of any disparity or conflict between the provision of such agreements, the provision which is more protective of Proprietary Information shall control. This Agreement may not be modified, in whole or in part.

6. Any behavior of stealing **FMan Soft company's clients is forbidden**. The Employee will be fired immediately.

**FMan Soft company**

**Employee**

**(Please sign & add ID photo)**

A handwritten signature in black ink, appearing to be 'Hector Tan', written in a cursive style.

**Hector Tan - Founder & CEO at FMan Soft company**